

A law behind every move you make

Every activity in the real world (e.g., buying a ticket, paying for groceries, signing an employment contract, etc.) has a legal underpinning. We rarely, if ever, consider the legal ramifications of our offline activities, because we are seldom the victims of a crime of fraud and resort to using the legal infrastructure (police, lawyers, courts) to resolve our grievances. The same applies to any online activity. The underlying thought behind every email we reply to, every twitter post we re-tweet, every net-banking transaction we perform, or every news article we read is that it is “legal” to do so. So what happens when someone does something illegal online. But even prior to that, how do we know whether something is really illegal.



What are cyberlaws?

“Cyberlaw or Internet law is a term that encapsulates the legal issues related to use of the Internet. It is less a distinct field of law than intellectual property or contract law, as it is a domain covering many areas of law and regulation.” (source: Wikipedia)

Cyberlaws, same as any other branch of law, help define what is legal and illegal, and stipulate mechanisms to detect, convict and punish offenders, and protect electronic property and its rightful use.

Cyberlaws pertain to diverse aspects of the electronic world such as:

- ▶ software licences, copyright and fair use
- ▶ unauthorized access, data privacy and spamming
- ▶ export of hardware and software
- ▶ censorship
- ▶ computerized voting

IT Act, 2000 and IT (Amendment) Act, 2008

These two pieces of legislation form the bedrock of cyberlaw infrastructure in India.

The Information Technology (IT) Act, 2000 was passed by the Indian Parliament in May 2000 and came into force in October of the same year.